

25NWCV03337 25NWCV03337

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PWD-NORWALK 1, LLC. v. HEVENLY JUMPERS LLC.

CASE NO.: 25NWCV03337

HEARING: Thursday, July

9, 2026, at 9:30 AM

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$29,113.00 in attorney's fees and costs of \$1,259.60.

This amount is to be paid by no later than 90 days from the date of the Court's issuance of this Order. This date may be extended by agreement of the parties.

Moving Party to give notice.

Background

The relevant procedural history of this case is as follows: On September 15, 2025, Plaintiff PWD-NORWALK 1, LLC ("Plaintiff") filed this unlawful detainer action against Defendants HEVENLY JUMPERS LLC, dha JUMPERS JUNGLE ("Defendant") and DOES 1 through 20, inclusive. On April 29, 2026, after stipulation, Judgment was entered in favor of Plaintiff against Defendant in the sum of \$146,227.04.

Plaintiff now moves for attorney's fees in the amount of \$36,087.50 and costs of \$1,259.60.

Prevailing Party

Cal. Civ. Code §1717(a) provides: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded wither to one of the parties or to the prevailing party , then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

(Id.) Here, the parties' lease agreement provides that the prevailing party shall be entitled to recover attorney's fees. (Moon Decl., Ex. A § 27.16(a).)

It is undisputed that Plaintiff is the prevailing party and is entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Attorney's Fees

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and

(4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorney’s reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501); (See also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644.) [“We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court.”].

Plaintiff’s Counsel’s Firm BUCHALTER LL bills at a rate from \$295/hr. (paralegal rate) to \$450/hr. (See Wirtz Decl., Ex. 1.) A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) Based on the declarations submitted by Counsel, the Court finds that Plaintiff Counsels’ hourly rates are reasonable.

The Court’s next determines whether the number of hours billed is reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

The Court has carefully reviewed Counsel’s Declaration. The Court finds that a few of Plaintiff’s time entries are excessive, particularly Plaintiff’s time entries relating to discovery responses. Further, as there is no opposition, any related anticipated fees are stricken.

Costs

“A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

“Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs.” Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308. However, “mere statements in a motion to strike and attorney declaration are insufficient to rebut the prima facie showing.” Rojas v. HSBC Card Services Inc. (2023) 93 Cal.App.5th 860, 896.

On May 4, 2026, Plaintiff filed a verified memorandum of costs. Costs are awarded in full.

CONCLUSION

Plaintiff's Motion for Attorney's Fees is GRANTED in the amount of \$29,113.00 in attorney's fees and costs of \$1,259.60 for a total award of \$30,372.60.

Plaintiff's
Objection is OVERRULED.